

54	El vs. Hyundai Motor America 25-01471426	1. Demurrer to Amended Complaint 2. Motion to Strike Portions Of Complaint The Demurrer to the First Amended Complaint brought by Defendant Hyundai Motor America is OVERRULED, in whole. Defendant’s unopposed Request for Judicial Notice is GRANTED, pursuant to Evidence Code section 452, subdivision (h). Initially, Defendant challenges the First through Third Causes of Action, solely on the basis the same are barred by the six-year statute of limitations provided in Code of Civil Procedure section 871.21. (Demurrer: 5:22-7:8 [ROA No. 86].) Defendant challenges the Fourth Cause of Action, on the same basis. (<i>Ibid.</i>) Pursuant to Code of Civil Procedure section 871.21, subdivision (b), “an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle.” (Code Civ. Proc., § 871.21, subd. (b).) Although disputed by Plaintiff, all four of Plaintiff’s Song-Beverly claims are encompassed within Code of Civil Procedure section 871.20, as this provision expressly references claims brought pursuant to Civil Code section 1794, as well as requests for civil penalties thereunder. (Code Civ. Proc., § 871.20, subd. (a).) While the Third Cause of Action alleges Plaintiff was injured by Defendant’s violation of Civil Code section 1793.2, subdivision (a)(3), Plaintiff nonetheless indicates he “brings this Cause of Action pursuant to Civil Code section 1794.” (¶63 of FAC [ROA No. 64].) This is sufficient to bring the claim within Code of Civil Procedure section 871.20. (See <i>Soro v. FCA US, LLC</i> (S.D. Cal. 2026) 2026 WL 473050, at p. 4.) Here, it is undisputed that Plaintiff purchased his vehicle on August 22, 2017. (¶16 of FAC [ROA No. 64].) Additionally, a review of the record confirms that Plaintiff initiated this action more than 6 years later, on March 28, 2025. (See ROA No. 2.) Nonetheless, Plaintiff persuasively asserts that application of Code of Civil Procedure section 871.21 within this action, would be improperly retroactive. “Generally, statutes operate prospectively only.” (<i>McClung v. Employment Development Dept.</i> (2004) 34 Cal.4th 467, 475.) “[A] statute may be applied retroactively only if it contains express language of retroactivity or if other sources provide a clear and unavoidable implication that the Legislature intended retroactive application.” (<i>Ibid.</i>)
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		The sole authority to address the retroactivity of Code of Civil Procedure section 871.21, found similar facts necessitated a retroactive application: “Defendant’s argument would <i>necessarily</i> involve a retroactive application of Section 871.21 because it would use a statute effective on January 1, 2025 to dismiss claims after June 2024.” (<i>Galdamez v. FCA US LLC</i> (C.D. Cal. 2026) --- F.Supp.3d ---- (2026 WL 1047004), at p. 3.) Thereafter, the Court explained: “Defendant does not point to any legislative history indicating that Section 871.21 was intended to apply retroactively, and the Court has been unable independently to find any such intent. In light of the strong presumption against retroactive application, the argument fails.” (<i>Ibid.</i>) Additionally, even assuming retroactive intent, retroactive application has constitutional implications and “must pass constitutional muster.” (<i>In re Marriage of Lackenmyer</i> (1985) 174 Cal.App.3d 558, 561 and <i>McClung v. Employment Development Dept.</i> (2004) 34 Cal.4th 467, 476 [“Retroactive application would also raise constitutional implications.”]) “It is well established that the Legislature may reduce the period within which an action may be commenced, since a statute of limitations affects the remedy only and does not impair the cause of action itself.” (<i>Niagara Fire Ins. Co. v. Cole</i> (1965) 235 Cal.App.2d 40, 43.) “However, a statute shortening the period of limitations cannot be applied retroactively to wipe out an accrued cause of action that is not barred by the then applicable statute of limitations.” (<i>Ibid.</i>) “To avoid the unconstitutional effect of retroactive application, a statute must be applied prospectively to such causes of action.” (<i>Ibid.</i>) “Even when applied prospectively, the claimant must be allowed a reasonable time within which to proceed with his cause of action.” (<i>Ibid.</i>) “If the statute operates immediately to cut off the existing remedy, or within so short a time as to give the party no reasonable opportunity to exercise his remedy, then the retroactive application of it is unconstitutional as to such a party.” (<i>Rosefield Packing Co. v. Superior Court</i> (1935) 4 Cal.2d 120, 122-123.) “[T]he court must inquire whether, in a given case, that retrospective application may violate due process by in effect eliminating the plaintiff’s right. If the time left to file suit is reasonable, no such constitutional violation occurs, and the statute is applied as enacted. If no time is left, or only an unreasonably short time remains, then the statute cannot be applied at all.” (<i>Aronson v. Sup. Ct.</i> (1987) 191 Cal.App.3d 294, 297.) Applying the above principles herein, regardless of whether legislative intent for retroactive application exists, application of Code of Civil Procedure section 871.21 herein is unconstitutional and impermissibly retroactive: As noted above, Plaintiff purchased his vehicle on August 22,
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		2017 (¶6 of FAC [ROA No. 64]), such that, pursuant to Code of Civil Procedure section 871.21, the statute of limitations ran on August 22, 2023. Consequently, when Code of Civil Procedure section 871.21 took effect on January 1, 2025, the effect of the provision was to <i>immediately</i> render Plaintiff's claims 1.5 years too late. Based on the above, Code of Civil Procedure section 871.21 does <i>not</i> apply to bar Plaintiff's claims and, consequently, the Court need not examine whether equitable tolling can be applied to this statute. As Code of Civil Procedure section 871.21 was the <i>sole</i> basis of Defendant's Demurrer to the First through Third Causes of Action, this portion of the Demurrer is OVERRULED. While Defendant's Reply attempts to invoke additional statutes of limitations, not referenced within the Demurrer, "[i]t is elementary that points raised for the first time in a reply brief are not considered by the court." (<i>Magic Kitchen LLC v. Good Things Intern. Ltd.</i> (2007) 153 Cal.App.4th 1144, 1161.) In addition to the above, Defendant independently challenges the Fourth Cause of Action, on the basis it is barred by a 4-year statute of limitations. "The statute of limitations for breaches of the implied warranty of merchantability is four years." (<i>Montoya v. Ford Motor Co.</i> (2020) 46 Cal.App.5th 493, 494.) Relying on <i>Cardinal Health 301, Inc. v. Tyco Electronics Corp.</i> (2008) 169 Cal.App.4th 116, Defendant asserts that implied warranties do <i>not</i> extend to future performance and, consequently, delayed discovery does not apply to these claims. (<i>Id.</i> at p. 134.) However, in contrast to <i>Cardinal</i>, the Court in <i>Mexia v. Rinker Boat Co., Inc.</i> (2009) 174 Cal.App.4th 1297 expressly analyzed a claim brought pursuant to the Song-Beverly Act and held "[t]he implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale." (<i>Id.</i> at p. 1304.) "Thus, although a defect may not be discovered for months or years after a sale, merchantability is evaluated as if the defect were known." (<i>Id.</i> at p. 1305.) Per <i>Mexia</i>, which specifically examined the standard applicable to Song-Beverly claims, the implied warranty has a "limited prospective existence beyond the date of delivery." (<i>Id.</i> at 1311.) Based on the above, delayed discovery applies to Plaintiff's Fourth Cause of Action. (See also Com. Code, § 2725, subd. (2).) Relying on <i>Cardinal</i> and the assertion that delayed discovery does <i>not</i> apply to claims for breach of the implied covenant, Defendant did not dispute the adequacy of Plaintiff's discovery allegations. (See Demurrer: 7:9-9:2 [ROA No. 86]; See also Demurrer: 4:19-22 [ROA No. 86].) While
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		Defendant challenges the sufficiency of Plaintiff's delayed discovery allegations within the Reply, once again, "[i]t is elementary that points raised for the first time in a reply brief are not considered by the court." (<i>Magic Kitchen LLC v. Good Things Intern. Ltd.</i> (2007) 153 Cal.App.4th 1144, 1161.) Based on the above, the Demurrer to the Fourth Cause of Action is OVERRULED. Lastly, the Demurrer to the Fifth Cause of Action is OVERRULED, as Plaintiff sufficiently alleges concealment. The Complaint identifies the concealed defect as a defect in the 1.6L engine which results in a loss of power, stalling, "engine running rough," engine failure and engine misfires. (¶72 of FAC [ROA No. 64].) Thereafter, the Complaint alleges Defendant knew the defect existed, knew it was material, but nonetheless concealed the defect from Plaintiff, despite knowing Plaintiff could not easily discover the defect himself. (See ¶76, ¶78, ¶81, ¶87, ¶88 and ¶90 of FAC.) Similarly, the Complaint alleges Defendant's knowledge of the defect was exclusive (¶81-¶84 of FAC), sufficient to invoke a duty to disclose. (<i>Bigler-Engler v. Breg, Inc.</i> (2017) 7 Cal.App.5th 276, 311.) Defendant does not articulate what additional information is lacking; however, regardless, "less specificity is required if the defendant would likely have greater knowledge of the facts than the plaintiff." (<i>City of Industry v. City of Fillmore</i> (2011) 198 Cal.App.4th 191, 211.) Defendant asserts Plaintiff failed to allege "actual or justifiable reliance" (Demurrer: 13:19-14:4 [ROA No. 86]), however, a claim for concealment requires that "the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact." (<i>Boschma v. Home Loan Center, Inc.</i> (2011) 198 Cal.App.4th 230, 248.) Here, the Complaint sufficiently alleges that "[h]ad Plaintiff known that the Subject Vehicle was equipped with a defective engine, Plaintiff would not have purchased the Subject Vehicle." (¶85 of FAC [ROA No. 64].) Finally, fraudulent inducement claims, as alleged herein, fall within an exception to the economic loss rule. (See <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 838-839, 843.) Based on all the above, the Demurrer brought by Defendant Hyundai Motor America is OVERRULED, in whole. Defendant shall file its Answer within 10 days.
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		The Motion to Strike brought by Defendant Hyundai Motor America is DENIED, in whole. Initially, Defendant seeks to strike the request for relief under Civil Code section 1794, subdivision (d), arguing this request “fails to the extent Plaintiff’s express and implied warranty claims regarding obligations under California Civil Code Division 3, Part 4, Title 1.7, Chapter 1 fail.” (Motion: 7:21-24 [ROA No. 82].) Given Plaintiff’s First through Fourth Causes of Action survived demurrer, this portion of the motion fails. Similarly, given Plaintiff has adequately alleged fraud, the request to strike Plaintiff’s request for punitive damages fails. (See Civ. Code, § 3294, subd. (c)(3).)
56	Xia vs. Placentia Yorba Linda Unified School District 24-01403405	Motion for Clarification Plaintiffs Ye Ying Stella Xia and Aretha Li’s motion to clarify whether the court’s March 6, 2025 and December 19, 2025 Orders operate to stay the demurrer and motion to strike filed by Defendants Placentia Yorba Linda Unified School District, Shawn Youngblood, Carrie Buck, Marilyn Anderson, and Karin Freeman is DENIED as MOOT. The demurrer and motion to strike for which Plaintiffs seek clarification came on for hearing on May 8, 2026. (ROA 312.) The court sustained the demurrer and granted in part and denied in part the motion to strike. (<i>Id.</i>) Plaintiff filed a Second Amended Complaint on June 22, 2026. (ROA 345.) Defendants Placentia Yorba Linda Unified School District, Shawn Youngblood, Carrie Buck, Marilyn Anderson, and Karin Freeman to give notice.
57	THE LAB, LLC vs. STRATHMORE CUSTOM HOMES, INC	Motion to Tax Costs Plaintiffs The LAB, LLC and HSB Investments and Consulting, LLC move to strike or tax from Defendant Cenk Acar’s Memorandum of Costs is GRANTED in part and DENIED in part.